

Third, the Third Amended Complaint does not adequately plead justifiable reliance. A fraud claim requires allegations that a plaintiff actually and justifiably relied on the misrepresentation and suffered resulting damage. (*Lazar, supra*, 12 Cal.4th at 638.) Here, while Gandhi alleges delay, distress, and additional medical consequences, the pleading does not clearly allege that he changed his position in justifiable reliance on a particular knowingly false statement, as opposed to suffering harm from the underlying absence of the images themselves. In other words, the Third Amended Complaint does not clearly allege damages connected to reliance on specific fraudulent statement(s) as opposed to the broader problem that the angiogram records were unavailable.

Accordingly, on the record as presently alleged, the elements of Fraud are not met and, as such, the demurrer is **SUSTAINED WITH LEAVE TO AMEND**.

VI. Conclusion

Accordingly, because this is the first challenge to the timeliness and sufficiency of these claims as against the JMH Defendants, and the Court cannot conclude at this stage that amendment would necessarily be futile, the demurrer to all three causes of action is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff has 15 days from notice of entry of this order to file and serve an amended pleading.

6. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE 3RD AMENDED COMPLAINT
FILED BY: SAW, AMAN, MD
TENTATIVE RULING:

Before the Court is Defendants Aman Saw, M.D., John Muir Health, John Muir Cardiovascular Medical Group, Inc.'s (collectively "JMH Defendants") motion to strike. The motion to strike relates to Plaintiff Niraj Gandhi's ("Plaintiff" or "Gandhi") Third Amended Complaint for (1) Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress.

Defendant moves to strike Plaintiff's Third Amended Complaint in its entirety on the ground that it was not timely filed; in the alternative, Defendant moves to strike Plaintiff's prayer for punitive damages on the ground that Plaintiff failed to state sufficient facts to allege punitive damages.

Plaintiff, who is an *in propria persona* litigant, opposes Defendants' motion to strike on the grounds that (1) the Court already rejected Defendants' untimeliness argument in its January 30, 2026 ruling on SRRMC's motion to strike, (2) the Court's prior ruling and reasoning on punitive damages against SRRMC does not apply where Dr. Saw is an individual, not a corporate defendant, (3) Dr. Saw qualifies as a managing agent under Code of Civil Procedure section 3294(b), (4) Code of Civil Procedure section 425.13 does not apply to intentional torts, (5) Plaintiff has adequately pled punitive damages, and (6) Defense counsel's failure to act in good faith during the meet and confer process warrants denial of the instant motion.

The JMH Defendants' motion to strike Plaintiff's Third Amended Complaint in its entirety is **DENIED**; the motion to strike Plaintiff's prayer for punitive damages is **GRANTED WITHOUT LEAVE TO AMEND**.

I. Factual Allegations and Background

This case arises out of a dispute over the alleged loss of medical records.

Niraj Gandhi underwent a left heart catheterization and angiogram performed by cardiologist Dr. Aman Saw ("Dr. Saw") at the San Ramon Regional Medical Center ("SRRMC" or "the hospital") Catheterization Lab ("Cath Lab") on November 24, 2022. (Third Amended Complaint ("TAC") at 2:24-25; 5:1-7:5.; Ex. A, B.) Immediately after the procedure, Gandhi asked to be provided with the images and video captured during the procedure and Dr. Saw told him the hospital would produce it on a CD with his discharge packet. (*Id.* at 7:5-11.) Gandhi did not receive a CD upon discharge, however. (*Ibid.*)

On November 25, 2022, Gandhi sent Dr. Saw a message following up about the missing CD and received no reply. (TAC at 7:12-15.) At a December 2, 2022,

follow-up appointment with Dr. Saw, Gandhi asked Dr. Saw to show him the images and video from the procedure, but Dr. Saw explained that the images and video were not accessible from his office, and that only SRRMC had access to them, so Gandhi would need to contact the hospital to obtain them. (*Id.* at 7:19-24.)

On November 28, 2022, and again on December 1, 2022, Gandhi called the hospital's medical records department to inquire about the CD. (TAC at 7:16-18.) In his attempt to obtain the images and video from the angiogram procedure performed at SRRMC, he picked up a CD from the hospital on December 7, 2022, and another on December 15, 2022. (TAC at 8:1-6.) In both instances, the discs he received did not contain the images or video from the procedure. (*Id.* at 8:1-14.)

Gandhi ultimately sought a second opinion on his heart condition from Dr. Ramesh Veeragandham ("Dr. Veeragandham") in June of 2023. (TAC at 3:12-13; 8:20-21.) Dr. Veeragandham advised Plaintiff that in order for him to determine whether an additional procedure was necessary, he would need to review the angiogram imaging, and, in its absence, a repeat procedure would be required. (*Id.* at 20:1-6) Dr. Veeragandham attempted to access the CDs Plaintiff provided from the hospital and, finding no images or video, Dr. Veeragandham contacted the Cath Lab at SRRMC to seek the imaging from the hospital directly. (TAC at 8:20-27.) Dr. Veeragandham made the following note July 6, 2023: "I tried to access the films in San Ramon but somehow there was no data. After back-and-forth, it was determined that the films were lost permanently." (TAC at 9:1-6.)

Gandhi contacted Dr. Saw on July 7, 2023, again asking for his help in obtaining the images and video from the procedure. (TAC at 9:7-15.) Dr. Saw replied: "I am quite surprised that the hospital had lost your records. ... The hospital medical record staff is trying to figure out what happened." (TAC at 9:7-15.) Gandhi then sent a subsequent message to Dr. Saw on July 14, 2023, "indicating how much pain and suffering [he] was going through because of someone else's mistakes" and asking for the names of employees at Defendant's Cath Lab. (TAC

at 9:18-22.)

On July 17, 2023, Gandhi received a phone call from a physicians assistant from the hospital who said she had spoken to Cath Lab staff and the Cath Lab supervisor, Mike Miller, regarding the missing records. (TAC at 9:23-25.) She told Gandhi that the computer system that stores and backs up images for the Cath Lab had “gone down” on the day of Gandhi’s procedure, causing the images to not be saved. (*Id.* at 9:23-28.) According to the Cath Lab staff, the problem was escalated to the computer company and the corporate hospital system, Tenet. (*Id.* at 3:26-4:1.)

On August 9, 2023, Gandhi underwent a second left heart catheterization, this time performed at John Muir Hospital in Concord by Dr. Christopher Chen. (TAC at 10:6-8.) Two days later he began to feel a “very strong burning sensation and numbness in [his] thigh and upper leg around the incision from where the catheterization was performed.” (*Id.* at 10:11-15.) He was subsequently diagnosed with a femoral nerve injury, likely caused by the second angiogram. (*Id.* at 4:8-14, 10:22-11:2.)

Gandhi filed the instant suit on July 1, 2024. SRRMC demurred and moved to strike, prompting a First Amended Complaint. Two subsequent pairs of demurrers and motions to strike by SRRMC led to second and third amended complaints; the operative Third Amended Complaint was filed September 5, 2025.

On January 30, 2026, the Court overruled in part and sustained in part a fourth motion to strike from SRRMC. The Court found insufficient grounds to strike Gandhi’s Third Amended Complaint in its entirety as untimely, but sustained the motion in part on the grounds that he failed to state facts sufficient to state a claim for punitive damages against SRRMC.

Gandhi filed a Doe amendment adding Aman Saw, M.D., John Muir Cardiovascular Services, and John Muir Health as Does one, two, and three, on November 14, 2025. JMH Defendants filed the instant motion and its

accompanying demurrer on January 20, 2026.

II. Meet and Confer Efforts

California Code of Civil Procedure section 435.5(a) requires the parties to meet and confer in good faith before the filing of a motion to strike in an attempt to informally resolve the objections raised therein.

Here, counsel for the JMH Defendants filed a declaration stating that, after obtaining a 30-day extension of time in which to file a responsive pleading, defense counsel and Plaintiff participated in a telephonic conference on January 20, 2026, during which they discussed relation-back, statute of limitations, and fact pleading issues raised by the instant motion to strike. (Declaration of Patrick Goonan iso Motion to Strike (“Goonan Dec.”) ¶¶5-7.)

Plaintiff, in turn, asserts the meet-and-confer process was not conducted in good faith because defense counsel did not initiate contact within the extension period, did not provide a promised detailed written statement before the call, waited until the day the responsive pleading was due to discuss the issues, and “no meaningful attempt to resolve the issues was made.” (Declaration re: Opposition to Motion to Strike Third Amended Complaint (“Gandhi Dec.”) ¶¶5-9.) Defense counsel likewise acknowledges the office intended to send a more detailed statement before the call but was “unable to complete” it. (Goonan Dec. ¶6(e).)

The record therefore suggests the meet-and-confer process was imperfect, however, the parties did in fact confer telephonically before the motion to strike was filed, and any insufficiency in the meet-and-confer process is not grounds to deny a motion to strike (Code Civ. Proc., § 435.5(a)(4). Accordingly, the Court considers the instant motion on the merits.

III. Legal Standard

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...” (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion made pursuant to § 435 “(a) Strike

out any irrelevant, false, or improper matter inserted in any pleading[,] [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) A motion to strike reaches only matters appearing on the face of the pleading or from matters of which the Court may take judicial notice. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.)

“An amendment should be allowed where the defect, though one of *substance*, may possibly be cured by supplying omitted allegations, and the plaintiff has not had a fair opportunity to do so...” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168.) Where the defect raised by a motion to strike is not reasonably capable of cure, leave to amend should be denied. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

IV. Analysis

As an initial matter, Plaintiff’s opposition contains repeated citation problems. The briefing relies on numerous authorities for propositions concerning motion to strike practice, punitive damages, and the applicability of Code of Civil Procedure section 425.13; many, if not most, of those citations are inaccurate, inapposite, or materially overstate the holdings of the cited cases. The Court therefore does not treat Plaintiff’s citation string as independently persuasive and instead evaluates each issue under the governing authorities and the pleaded facts.

A. Motion to Strike Third Amended Complaint in Its Entirety

The JMH Defendants move to strike Plaintiff’s complaint in its entirety on the same timeliness grounds Defendant SRRMC invoked in its October 8, 2025 motion to strike in this case. The Court addressed and rejected these arguments in its January 30, 2026 ruling, finding that the delay, such as it was, did not

prejudice SRRMC. The JMH Defendants were not added until November 14, 2025, more than two months after Plaintiff's Third Amended Complaint was filed. Nothing in the JMH Defendants' motion presents a basis to reach a different result from the one the Court reached as to SRRMC.

The motion to strike Plaintiff's Third Amended Complaint in its entirety is denied for the reasons stated in the Court's prior January 30, 2026 ruling, which is incorporated herein by reference.

B. Motion to Strike Prayer for Punitive Damages

i. Code of Civil Procedure Section 425.13

Section 425.13(a) regulates the pleading of a punitive damage claim against a health care provider and provides in part: "In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint...unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed." (Code Civ. Proc., § 425.13(a).) A plaintiff wishing to include a claim for punitive damages must file a noticed motion seeking to amend their pleading to add such damages and must demonstrate a substantial probability of prevailing on that claim pursuant to Civil Code section 3294. (Code Civ. Proc., § 425.13(a); *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 713.) "[A]ny claim for punitive damages in an action against a health care provider [is] subject to [section 425.13] if the injury that is the basis for the claim was caused by conduct that was directly related to the rendition of professional services." (*Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 192.)

Here, Plaintiff has never sought or obtained a court order permitting a punitive damages claim against any defendant in this action. This failure is independently dispositive as to the JMH Defendants.

Every claim Gandhi asserts against the JMH Defendants arises directly from either the care he received November 24, 2022, when Dr. Saw performed a cardiac catheterization at SRRMC, or the subsequent handling of the imaging

records from that procedure.

The negligence claim alleges Defendants breached their duty when they “[failed] to properly save the images and videos from Plaintiff's medical procedure, thereby losing crucial medical records ... [and failed] to promptly notify Plaintiff of the loss of these records and by repeatedly providing Plaintiff with incomplete and inaccurate records, specifically CDs with no images and videos from the Angiogram.” (TAC at 12:19-24.) The fraud claim alleges “Defendants, through their employees and managing agents, repeatedly represented to Plaintiff that the medical images and videos from Plaintiff's cardiac catheterization procedure were available and would be provided to him on CDs.” (*Id.* at 14:16-21.) The IIED rests on the same course of conduct. (*Id.* at 13:17-21.) Each cause of action thus emanates from the manner in which Dr. Saw provided medical services to Gandhi, bringing this action squarely within section 425.13.

Central Pathology is directly on point. There, the California Supreme Court held that section 425.13 applied to fraud and IIED claims because they arose from the manner in which the defendant physicians performed and communicated medical tests – conduct that is ordinarily and usually part of medical professional services. (*Central Pathology Service Medical Clinic, Inc., supra*, 3 Cal.4th at 191-192.)

Plaintiffs' cause of action for fraud in this case is directly related to the manner in which defendants provided professional services. The claim emanates from the manner in which defendants performed and communicated the results of medical tests, a matter that is an ordinary and usual part of medical professional services. It is therefore governed by section 425.13(a). Plaintiffs' cause of action for intentional infliction of emotional distress is predicated on the same alleged acts as the fraud

claim. Therefore, it too is directly related to defendants' performance of professional services and is governed by section 425.13(a).

(Central Pathology Service Medical Clinic, Inc. supra, 3 Cal.4th at 192-193.)

The facts here are materially indistinguishable. Dr. Saw's alleged misrepresentation about the imaging documentation is no less a professional act than a physician's misrepresentation about test results.

Plaintiff's opposition does not meaningfully address section 425.13. Instead, Plaintiff incorrectly contends that section 425.13 does not apply to intentional tort claims. (Opp. at 9:20-10:3.) For this misapprehension of the law, Plaintiff utilizes the inapposite citation *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783. (*Ibid.*) *Covenant Care* did not effect a blanket prohibition on the application of section 425.13 on intentional tort claims, however, as the court in that case was construing the Elder Abuse and Dependent Adult Civil Protection Act, a separate statutory scheme with its own punitive damages provisions. (*Covenant Care, Inc., supra*, 32 Cal.4th 771, 783.) *Covenant Care* has no application to ordinary medical negligence and fraud actions governed by section 425.13.

Central Pathology, not *Covenant Care*, controls here. "[I]dentifying a cause of action as an 'intentional tort' as opposed to 'negligence' does not itself remove the claim from the requirements of section 425.13(a). (*Central Pathology Service Medical Clinic, Inc., supra*, 3 Cal.4th at 192.) Accordingly, Plaintiff's contention that section 425.13 is inapplicable on this basis fails.

Plaintiff included a punitive damages claim in his Initial Complaint filed July 1, 2024, and has carried it through each successive amended pleading without ever filing a section 425.13 motion. The statute does not merely regulate amendments to add punitive damages, it prohibits inclusion of such a claim in any complaint absent prior court authorization. (*Central Pathology Service Medical Clinic, Inc., supra*, 3 Cal.4th at 189.) The punitive damages claim against

the JMH Defendants has accordingly been procedurally unauthorized since the inception of this litigation.

The motion to strike is **GRANTED**. Because the defect is not a pleading insufficiency but rather the absence of statutory authorization, **LEAVE TO AMEND THE PLEADING IS DENIED**. This ruling does not permanently foreclose a punitive damages claim against the JMH Defendants. Rather, it forecloses Plaintiff from unilaterally including such a claim in any further amended pleading. Should discovery produce evidence sufficient to support the required showing, Plaintiff may seek to assert punitive damages against the JMH Defendants by filing a properly noticed motion pursuant to Code of Civil Procedure section 425.13(a) seeking court authorization to assert such a claim.

i. Plaintiff's Remaining Arguments Fail on the Merits

Even setting aside the section 425.13 bar, Plaintiff's punitive damages claim fails on the merits. To recover punitive damages in an action for the breach of an obligation not arising out of contract a plaintiff must prove by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227; Code Civ. Proc., § 3294(a).) To survive a motion to strike, an allegation of punitive damages requires the plaintiff to plead the ultimate facts showing entitlement to such relief. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1254.) Furthermore, the circumstances of oppression, fraud or malice must be alleged in the pleading to support a claim of punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Such charges must be pled with specificity; conclusory allegations are insufficient. (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.)

As used in this section, the following definitions shall apply:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a

willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

An allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “*There must be an intent to vex, annoy or injure.* Mere spite or ill will is not sufficient; and mere negligence, *even gross negligence is not sufficient to justify an award of punitive damages.*” (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894 (emphasis in original).) “Malice” required by section 3294 implies acts taken in the spirit of mischief or with criminal indifference. (*Taylor v. Superior Court of Los Angeles County* (1979) 24 Cal.3d 890, 894 (citations).)

“Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees.” (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.)

An employer shall not be liable for damages pursuant to [§ 3294] subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified

the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

(Civ. Code, § 3294(b).)

An officer, director, or managing agent is one whose intentions guide corporate conduct. (*Cruz, supra*, 83 Cal.App.4th at 167.) A managing agent is more than a mere supervisory employee. (*White v. Ultramar* (1999) 21 Cal.4th 563, 573.) “In order to demonstrate that an employee is a true managing agent under section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation's business.” (*Id.* at 577.)

Here, the Third Amended Complaint makes no specific factual allegations establishing that Dr. Saw acted with intent to injure, vex, or deceive Plaintiff, as required to support a finding of malice, oppression, or fraud under section 3294. The allegations against Dr. Saw amount to a claim that he falsely charted that images were saved and later failed to assist Plaintiff in obtaining the records. (TAC at 7:12-15, 19-24, 8:15-17.) Even accepting those allegations as true, they describe at most a negligent or reckless omission, not conduct undertaken with the willful and conscious disregard for Plaintiff’s rights required under section 3294. (*Ebaugh, supra*, 22 Cal.App.3d at 894.)

As to John Muir Health and John Muir Cardiovascular Medical Group, the Third Amended Complaint contains no allegation that any officer, director, or managing agent of either entity authorized or ratified, or had advance knowledge of any allegedly wrongful conduct. The managing agent standard requires more than supervisory authority, it requires authority over decisions that ultimately determine corporate policy. (*White, supra*, 21 Cal.4th at 573;

Cruz, supra, 83 Cal.App.4th at 167.) No such allegation appears anywhere in the Third Amended Complaint as to either entity.

Plaintiff's opposition does not cure these deficiencies. Plaintiff cites *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 871-872, for the proposition that "[a] physician who intentionally falsifies a surgical chart to conceal an error from a patient commits fraud," however this authority is inapposite, and, in fact, adverse. (Opp. at 8:10-11.) *Brousseau* instead holds that conclusory punitive damages allegations are insufficient under Civil Code section 3294 – the precise defect present here. Plaintiff also cites *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682, for the proposition that "[a] motion to strike is not a vehicle to weigh competing inferences." (Opp. at 11:9.) The characterization does not appear in *PH II*; to the contrary, *PH II* confirms that motions to strike are the proper procedural vehicle to challenge improperly pled punitive damage claims. (*PH II, Inc., supra*, 33 Cal.App.4th at 1683.)

For the foregoing reasons, and for the reasons stated in the Court's January 30, 2026 ruling as to SRRMC, which are incorporated herein by reference, Plaintiff's punitive damages claim fails on the merits, as an independent and alternative ground. On this basis, the motion to strike punitive damages is **GRANTED WITHOUT LEAVE TO AMEND**. Plaintiff has now had four opportunities to adequately plead punitive damages with specificity and has not done so. The conduct alleged describes, at most, negligent or reckless record-keeping, not despicable conduct undertaken with willful and conscious disregard for Plaintiff's rights. This denial does not affect Plaintiff's ability to seek section 425.13 authorization should discovery develop facts not currently alleged.

V. Conclusion

The JMH Defendants' motion to strike Plaintiff's Third Amended Complaint in its entirety is **DENIED**. The motion to strike Plaintiff's prayer for punitive damages is **GRANTED WITHOUT LEAVE TO AMEND** on two independent grounds: (1) Plaintiff failed to obtain court authorization pursuant to Civil Code section 425.13(a) prior to including a punitive damages claim in any complaint in this

action, and (2) the Third Amended Complaint's allegation are insufficient as a matter of law to support a finding of oppression, fraud, or malice under Civil Code section 3294.

7. 9:00 AM CASE NUMBER: C24-02303
CASE NAME: JOSE O'COIRBHIN VS. FJM PRIVATE MORTGAGE FUND, LLC
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY: O'COIRBHIN, JOSE
TENTATIVE RULING

The unopposed motion of **John R. Setlick** to be relieved as counsel for **Plaintiff Jose O'Coirbhin** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff Jose O'Coirbhin's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff's** Counsel to be Relieved as Counsel of Record. This motion is Granted.

The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) adding the information of the pending Hearings on Discovery Motions Set for June 10, 2026 at 10:30 a.m. in Dept. 57. The withdrawal is effective upon Counsel **John R. Setlick**